

25VECV05502 25VECV05502

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-06-29

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Case Number: 25VECV05502 Hearing Date: June 29, 2026 Dept: B

Tentative Ruling

Bibicoff v. Ford Motor Company,

Case no. 25VECV05502

Hearing date June 29, 2026

Plaintiff

Bibicoff's Motion for Sanctions - UNOPPOSED

Plaintiff

Bibicoff sues defendants Ford Motor Company and Knight Sunrise Fontana LLC for alleged violations of the Song-Beverly Act and moves for sanctions pursuant to Code Civ. Proc. §871.26(c). The motion is unopposed.

In

September 2024 the California Legislature enacted Assembly Bill No. 1755, which amended the Code of Civil Procedure to establish streamlined procedures for Song-Beverly Act cases. See Code Civ. Proc., § 871.20, et seq. The purpose of these reforms was to reduce court congestion and facilitate early resolution by mandating initial disclosures and requiring the parties to participate in mediation shortly after pleadings are filed. Code Civ. Proc. §871.26(c).

The

statute requires early exchange of documents and creates a right for initial depositions within 120 days of filing an answer and mediation within 150 days. Code Civ. Proc. §871.26(b)–(e). All other discovery is stayed, aside from the

depositions and required disclosures, pending mediation. Id.

The

Legislature enacted Senate Bill No. 26, which permits manufacturers to opt into the statutory scheme. See Code Civ. Proc. §871.30(a). Ford opted into the new statutory scheme. Decl. Meagle, para. 3, exh. 1. Ford was served with a notice of deposition for Ford's PMQ on 12/11/25. Id. at para. 6, exh. 2.

Ford was served with an amended deposition notice 3/6/26. Id. at para. 7, exh. 3. Ford produced a PMQ for categories 1-6 and 8 but failed to produce a PMQ for categories 7 and 9-11. Counsel for Ford agreed on the record on 3/24/26 that a second PMQ would be produced. Id. at para. 11, exh. 5. No second PMQ has been produced. Id.

Section

871.26(c) requires parties to participate in depositions in response to a timely request. Code Civ. Proc. §871.26(c). When a party fails to comply and cannot show good cause, the court must impose a \$2,500 sanction against defense counsel payable within 15 days. Code Civ. Proc. §871.26(j)(2). Ford offered no justification for its failure to produce a second PMQ and has not opposed this motion.

GRANTED;

sanctions of \$2,500 payable by defense counsel Narain Maclear LLP within 15 days.